

CHAPTER



Municipal Governing Structures

Efficiency and accountability: these values have been central to the discourse on reforming local governing structures in Canada, and more generally, over the past several decades. For LSE/ANU's Peter Self, they are zero-sum related: the more you seek to add to efficiency, the more you detract from the accountability side of the equation, or visa versa. This applies to reform efforts around metropolitan amalgamations—as in Halifax, Ottawa, or Toronto; it also applies to pressures on local governments to engage in more P3s (public-private partnerships) for the delivery of local services, and it impacts new public management debates about reforms to municipal governing structures.

Many of the governing models used over recent years—and the philosophies underlying them—have focused more on efficiency and coordination in the delivery of services to the relative neglect of the political, representative, and accountability aspects that are (or should be) equally a concern of municipal governments. Self has called this efficiency-accountability dilemma the question in all of public administration.¹

Introduction

An examination of how municipalities are governed logically starts with their internal governing machinery, and particularly the way councils and staff are organized and interrelate. A number of different governing structures have been found in Canada's municipalities over the years, each with particular strengths or shortcomings. Institutional structure is

1 Peter Self, *Administrative Theories and Politics*, London, UK: Allen and Unwin, 1977, pp. 277–79.

important “because it is the vehicle through which the basic purposes and values a society wishes to pursue through local government are carried out. It is thus presumed that institutions matter—that political and policy outcomes will differ—as institutional structure differs.”²

A number of variations on the basic municipal structure have been introduced over the years. These institutional reforms have usually been a response to changes in the prevailing values and roles associated with municipal government and, in turn, the new structures arising from the reforms have their own impacts on the local level and the distribution of power within it. As will become evident, much of that impact tended to affect adversely the representative, political, and accountability aspects of municipal governing.

In recent years, the focus has shifted from municipal institutions to new governing arrangements that increasingly extend to organizations and operations outside formal municipal structure. This broader focus reflects the growing appreciation of the distinction between *government* and *governance*, a distinction briefly introduced in Chapter 1 and referred to several times since.³ Government refers to the formal institutions of the state, election arrangements, and decision-making processes. Governance is a broader term that refers to the relationships between the formal institutions of government and civil society.⁴ Governance is more flexible (and less well defined) and can embrace a wide variety of relationships. Local government, therefore, refers to democratically elected municipal councils and their departments of municipal staff. In contrast, local governance encompasses these governing structures as well as other public, private, and voluntary bodies that are harnessed to address community needs.

Some view the concept of local governance as little more than a device for shifting responsibilities from local governments to the private and voluntary sectors—a means of offloading expenditures or providing an opening for private companies to pick up business. A more positive view is that local governance is not a replacement for local government but an additional mechanism for achieving broader cooperation and coordination

2 Harold Wolman, “Local Government Institutions and Democratic Governance,” in David Judge, Gerry Stoker, and Harold Wolman, *Theories of Urban Politics*, London, UK: Sage Publications, 1995, p. 135.

3 The discussion of terms that follows is an amalgam of definitions and comparisons provided by Robin Hambleton, Hank V. Savitch, and Murray Stewart (eds.), *Globalism and Local Democracy*, London, UK: Palgrave Publishers Ltd., 2002, pp. 150–51; H.V. Savitch and Paul Kantor, *Cities in the International Marketplace*, Princeton, NJ: Princeton University Press, 2002, pp. 329–30; and Mario Polèse and Richard Stren (eds.), *The Social Sustainability of Cities*, Toronto: University of Toronto Press, 2000, pp. 17–20.

4 For a relatively recent discussion of civil society aspects, see Peter McKinlay, “Who Builds Civil Society,” *MDL Monthly Insights*, Auckland, New Zealand, July 2015.

at the local level. More insights into the nature of local governance will be provided in the next two chapters.

The Machinery of Municipal Government

Before venturing into the larger and less distinct world of local governance, let's begin with the machinery of local government. More specifically, we will examine the machinery of *municipal* government—not including the structures that may be found amongst the wide variety of agencies, boards, and commissions that form part of local government.

On the surface, this approach sounds quite straightforward, and the basic structure of municipal government is certainly simpler than that found at the provincial and federal levels, with their separate executive and legislative branches. There aren't separate branches of government at the municipal level; responsibilities are concentrated in the elected council and are carried out by appointed staff who are mostly organized into a number of functionally specialized departments.

THE MUNICIPAL COUNCIL

The powers assigned to a municipality are exercised on behalf of its residents and ratepayers by a council elected by them. Provincial legislation usually includes provisions for the form of council and such details as the number of councillors and whether election is by general vote (at-large) or by ward (a distinction discussed below). However, the new municipal legislation passed in most provinces over the past decade (and discussed in Chapter 6) often gives municipalities somewhat more discretion with respect to such matters. Municipal councils consist of a head (known as warden or chair in counties and other upper-tier governments; mayor in cities and towns; and reeve, chair, or overseer in villages and townships) and a widely varying number of councillors. While the total membership varies greatly, there has been a tendency to have small councils of from 5 to 15 members, largely on the grounds that a small group is less unwieldy and more efficient in making decisions—with the more recent exceptions being amalgamated megacities such as Toronto.

Members of council are expected to represent the local community and act on its behalf—although that role is not nearly as simple or straightforward as it sounds, as discussed below. They also exercise a policy-making role through which they determine services and service levels, approve budgets, enact rules and regulations, and generally shape the local community and the quality of life within it. A third general role of councillors is managerial (for want of a better term), and it involves

Figure 8.1 Township of Essa, Simcoe County, Ontario, Council Meeting, October, 2015



Photo courtesy of Tom Smith, with permission of photographer and Township of Essa Council.

providing an oversight of municipal operations to ensure that policies are implemented as intended, funds are expended as authorized, and programs are delivered efficiently and effectively. This local politician–civic staff relationship is sometimes a bit more nuanced, with suggestions that permanent professional staff can at times have more policy sway than is generally understood.⁵

THE REPRESENTATIVE ROLE OF MEMBERS OF COUNCIL

The roles of councillors in making policy and overseeing implementation of policy by municipal staff receive a good deal of emphasis and will be explored in a subsequent section on council-staff relations. But it is a consistent theme of this text that the representative role of municipal government is most important, and it is the elected members of council who fulfill this role, well or poorly. The longstanding bias in favour of small councils makes it more likely that they will not represent adequately the diversity of the population. Relatively small councils are even found in many of Canada’s largest municipalities. For example, Vancouver has a mayor and 10 councillors, and Edmonton has had 12 councillors (plus a mayor) since

⁵ See, for example, Patrick Smith and Kennedy Stewart, “Immature Policy Analysis: Building Capacity in Eight Major Canadian Cities,” in Laurent Dobuzinskis, Michael Howlett and David Laycock (eds.), *Policy Analysis in Canada: The State of the Art*, Toronto: University of Toronto Press, 2007, Ch. 11, pp. 265–88.

the beginning of the 20th century, even as it grew from a small town to a city of over 900 000 people. Winnipeg has had twice as many members of the provincial legislature as it has city councillors—even though the latter are representatives of the level of government supposedly closest to the people.⁶ To cite one more example, the city of Mississauga has a council of 10 (plus mayor) for a population of 800 000. In Ontario, the provincial government—at least under the Progressive Conservative regime of Mike Harris in the 1990s—had been particularly keen to reduce the size of municipal councils under the guise of increasing efficiency, without any apparent regard for the representative role that these councils are supposed to play.⁷

Ward Versus General Vote

Quite apart from the size of the council, the representative role of councillors is affected by the method of their election. While directly elected heads of council are chosen by a general vote of the entire municipality, members of council may be elected on the basis of a ward system or neighbourhood constituency. In the latter case, the municipality is divided into several geographic areas with a number of members (usually an equal number) chosen from each of these areas. Candidates don't canvass over the whole municipality but only in "their" ward, and voters are limited to choosing from among the candidates in their particular ward. Whether election is by ward or general vote may be dictated by provincial statute; it may be at the discretion of the council; or it may be decided by council subject to the approval of the municipal electors.

Both methods of election have their proponents and their alleged advantages and disadvantages. Supporters of the ward system argue that under this approach the voters are much more likely to be familiar with the limited range of candidates from whom they must choose and the candidates will be more aware of the particular needs and interests of their constituents. It is also contended that ward elections ensure that all areas of the municipality will be represented on council, campaign costs will be less expensive, and a higher voting turnout will be achieved, an assertion that appears to have some validity.

On the other hand, those supporting election by general vote (or "at-large") claim that ward elections tend to perpetuate and even

6 These two examples are from Jonathon Barker and Christopher Leo, "Introduction," in André Carrel, *Citizens' Hall: Making Local Democracy Work*, Toronto: Between the Lines, 2001, p. 3.; included here are 2015–2016 population numbers.

7 A survey of three amalgamated municipalities in Ontario found that a sizeable minority of residents felt that their access had been diminished, although this view was not shared by councillors or by community leaders. See Joseph Kushner and David Siegel, "Do Municipal Amalgamations Reduce Political Representation and Accessibility?," *Municipal World*, May 2004, pp. 7–9.

accentuate differences and divisions in the municipality. It is argued that a ward council is very parochial in outlook, with councillors worrying about their individual bailiwicks wherein they must seek re-election rather than being concerned about the good of the whole municipality. It is also contended that some representatives get elected on a ward basis who would not have been chosen if they were running over the entire municipality. Election by general vote is therefore felt to result in stronger, better qualified candidates since they must have support throughout the municipality. Proponents of a general or at-large vote also assert that it results in a council more capable of taking a broad view of the overall needs of the municipality.

There are counterarguments for most of these points. Ward elections do not ensure representation on council for every area of the municipality since candidates do not have to live in the ward in which they run—although “outside” candidates rarely succeed unless they have some sort of attachment to the ward. To the allegation that representatives get elected from wards who would not be chosen in at-large elections, this result (if it happens) is precisely why ward elections are needed: to ensure a broader cross-section of elected representatives, including those who may lack the profile and deep pockets to succeed in an at large campaign. To take one more example, where is the proof that at-large elections result in better quality candidates, and how is this quality measured? Is it on the basis of education, income, and social class, or is a high quality candidate one who serves with dedication and integrity regardless of socioeconomic background? Kennedy Stewart has suggested that given different levels of participation across more well-to-do versus poorer areas of a city like Vancouver, at-large systems—as found by US courts—also may discriminate in class or ethnic terms.⁸

Whatever the respective merits of these two methods of election, it might be assumed that beyond a certain population size (which is difficult to specify precisely) election by ward becomes almost inevitable to ensure that the citizens will have some prospect of knowing the candidates and the candidates will not be faced with the financial and time demands of canvassing an excessively large population. While this relationship between the population of a municipality and the method of election generally holds true, there are exceptions, with the most notable one being the system of at-large elections in the city of Vancouver, and indeed in *all* but one British Columbia municipalities.⁹ Vancouver voters have on more

8 See Kennedy Stewart, “Measuring Local Democracy: The Case of Vancouver,” *Canadian Journal of Urban Research* 6, 2, 1997, pp. 160–83.

9 BC “allows” for a “mixed system”—some on council elected by wards and some at-large. Only one BC municipality took this mixed option: the District of Lake Country. To ensure each of its “hamlets” was reflected on council, the district added wards to at-large representation.

than one occasion given their support to the system of ward elections abandoned in 1936, but never with the 60 percent approval required by the province to bring about the change.

As was very evident during the turn-of-the-century reform era of 100 years ago (discussed in Chapter 2), the issue of ward elections versus at-large elections revolves around the distribution of power within city government. Ward elections make it more likely that the diversity of interests within a municipality will have a voice on council. Indeed, it was precisely for this reason that the middle-class businesspeople who were central to this reform movement pushed for the abolition of wards. In Western Canada, for example, wards were viewed with disfavour because they provided a means through which the growing labour movement and the large numbers of impoverished Europeans settling in major cities could gain a voice.¹⁰ It remains true today that efforts to abolish ward systems of election, and to reduce the size of councils, have the effect of diminishing local representation. As has been the case with reforms to federal and provincial voting systems, real reform may take judicial prodding in municipal settings too where these issues predominate. That was the case in several US states regarding at-large system reform, where courts have concluded at-large elections do discriminate.

It remains an oft-considered question for Canada's local governments—with numerous communities considering changing between wards and at-large; recent examples include Oshawa (to wards), Orillia and Owen Sound (back to at-large), along with Stratford and Charlottetown; meanwhile Lethbridge, Red Deer, and Meaford sought a ward system; and several municipalities—such as Moose Jaw and Kamloops—considered hybrid forms.

Trustee or Delegate?

Another major consideration affecting the representative role of councillors is whether they view their role as a trustee or a delegate. Those who view councillors as trustees believe that successful candidates should exercise their own judgment as to the best course of action with respect to the various issues that arise, while recognizing that the public will pass judgment on their performance at the next municipal election. The classic expression of the elected representative as trustee was provided by Edmund Burke, the 18th-century British statesman and politician, who agreed that constituents' wishes and opinions ought to have great weight, but stated that a representative “owes you not his industry only, but his

10 Jack Masson with Edward C. LeSage Jr., *Alberta's Local Governments: Politics and Democracy*, Edmonton: University of Alberta Press, 1994, p. 274.

judgment; and he betrays, instead of serving you, if he sacrifices it to your opinion.”¹¹

While eloquently expressed, Burke’s views might not be warmly received at a time when there are calls for greater accountability on the part of those elected and even for more avenues for direct democracy, through which the public can substitute its judgment for that of the elected representative. The alternative to the councillor as trustee is the view that the councillor is chosen as a delegate, to govern in accordance with the wishes of the electorate and to act as a mirror faithfully reflecting their views. It is unclear how the councillor is to identify the views that are to be reflected so faithfully, how a diversity of viewpoints is to be handled, or how to avoid being overly influenced on issues by a vocal minority;¹² it is a conundrum for representatives and citizens alike.

THE HEAD OF COUNCIL

No discussion of municipal council would be complete without an examination of the position of head of council. This position has become important over the years in spite of its lack of formal powers. While heads of council in Canada are not limited to the largely ceremonial role of their British counterparts, neither are they comparable to the American “strong mayor” who, in many states, has extensive authority with respect to preparation of current and capital budgets, planning, hiring, and firing.

Consider Ontario’s reformed *Municipal Act*, which took effect on January 1, 2003. It provides that the role of the head of council is to act as chief executive officer, preside over council meetings, provide leadership to the council, represent the municipality at official functions, and carry out the duties of the head under this or any other act. Not only are these duties quite vague and general, but also the new act actually omits three provisions that used to be found in the legislation.¹³ For reasons that were never explained, the province ignored the opportunity to strengthen the position at the time of the *Municipal Act* changes.

11 *The Works of the Right Honourable Edmund Burke: A New Edition*, Vol. III, London, UK: F. & C. Rivington, 1826, p. 18. For a rebuttal, see Frances Morrell, *From the Electors of Bristol, The Record of a Year’s Correspondence between Constituents and Their Members of Parliament*, London, UK: Rountree, 1973.

12 For a discussion of these conflicting perspectives, and the way they also manifest themselves when councillors also sit on other bodies such as upper-tier governments and separate boards, see George Cuff, David Siegel, and C. Richard Tindal, “Representation Riddle: Conflicting Demands on the Local Councillor,” *Municipal World*, December 2004, pp. 9–12 and 35. See also, Frances Morrell, *From the Electors of Bristol*.

13 These provisions were as follows: to be vigilant and active in causing the laws of the municipality to be executed and obeyed, to oversee the conduct of all subordinate officers, and to communicate to council from time to time such measures as may improve the municipality.

Nor was this oversight addressed in any significant way in major amendments to the *Municipal Act* (in Bill 130) at the end of December 2006. The amendments defined the role of the head of council as chief executive officer, but again in vague terms such as uphold, promote, participate in, and foster.

The legislation goes a little farther in some provinces. For example, Manitoba, British Columbia, and Quebec provide a limited form of veto by authorizing the head of council to return any matter to the council for reconsideration. The latter two provinces and Saskatchewan empower the head of council to suspend any officer or employee, subject to confirmation by council. Changes to the *City of Winnipeg Act* in 1998 provide for the mayor to chair the Executive Policy Committee (EPC), to appoint its members (four of whom are simultaneously appointed as chairs of the city's standing committees), and to suspend the Chief Administrative Officer (CAO) for up to three days—by which time the EPC must reinstate the CAO, extend the suspension for 30 days, or recommend to council dismissal of the person. With these changes, Winnipeg's mayor “became arguably the most powerful municipal executive in Canada.”¹⁴

The position of mayor in the City of Toronto has been strengthened in a similar fashion, as a result of changes that occurred in conjunction with the *City of Toronto Act*, which took effect in 2007. It was widely held that if the city was going to be given more powers, it also had to acquire a more effective governing model. So strongly did the province hold this view that the legislation included a provision authorizing it, by regulation, to require the city to appoint an executive committee and to require the mayor to exercise various appointment powers. To avoid the risk of such highhanded action by the province, city council moved to introduce similar changes *before* the legislation was passed.

The main specific power given to the mayor (echoing Winnipeg's reform of 1998) was the right to appoint the chairs of the standing committees and the deputy mayor, who make up 8 of the 12 members of the executive committee, along with the mayor who is chair. But even if all 13 members support a particular issue, they still represent a distinct minority in a council of 45 members. This political reality was all too evident in the embarrassing setback of Mayor David Miller in July 2007 when his proposal to introduce two new taxes, backed by his executive committee, was defeated 23–22 in council (with the help of one defection from the executive committee). It may be that

14 Christopher Leo and Mark Piel, “Municipal Reform in Manitoba,” in Joseph Garcea and Edward C. LeSage Jr. (eds.), *Municipal Reform in Canada*, Toronto: Oxford University Press, 2005, p. 117.

only political parties can provide the cohesion necessary for sustained direction on a council of this size. The merits of local political parties are examined later in this chapter, but Canadians usually respond quite negatively to attempts to introduce them into the municipal scene, reflecting a long established notion of non-partisanship in local matters.

In spite of their lack of formal power, Canadian mayors have high local political visibility, in large part because of the tendency for local media in a community to contact the mayor for short summaries of municipal business or comments on current controversies.¹⁵ Their ceremonial and symbolic functions are also important and can be the basis for popularity and re-election, and—if used effectively—for building links between the diverse elements of a local community. The mayor does not have any real authority over staffing and the administrative structure, but can exercise considerable influence by providing a link between senior managers and council. “With easier access to senior officials than other council members enjoy, and the ability to interpret council’s wishes when they have not been clearly stated, the mayor can exert considerable influence within the municipal bureaucratic apparatus.”¹⁶

Given these limits on their formal power, heads of council in Canada must rely heavily on their personality and persuasive skills in attempting to provide leadership. Except in those limited instances where organized political parties exist, a council is made up of a group of individuals with potentially different interests and concerns and no sense of cohesion or collective will. As a result, the challenge facing a mayor has been likened to “herding cats” in an article discussing the task facing Bob Chiarelli when he was elected in November 2000 as the first mayor of the new city of Ottawa. The new council was described as divided by geography, political beliefs, urban-rural concerns, ethnicity, and specific interests. A number of factions were in evidence: “left wing versus right wing, downtown councillors, rural councillors, the east-end group, the west-end group, the French lobby, the youth wing, and the old Nepean lobby.”¹⁷ Expecting any head of council to build a consensus and provide effective direction in circumstances such as these is quite a tall order. Another example, from small town Canada, is the District of Lanzville, a new community of about 4000, north of Nanaimo, BC. After the November 2014 local government elections, the mayor and six councillors faced growing tensions

15 Andrew Sancton, “Mayors as Political Leaders,” in Maureen Mancuso, Richard Price, and Ronald Wagenberg (eds.), *Leaders and Leadership in Canada*, Toronto: Oxford University Press, 1994, pp. 179–80.

16 *Ibid.*, p. 180.

17 Ken Gray, “Mayor’s Job like Herding Cats,” *Ottawa Citizen*, January 17, 2001.

and disagreement. By May 2015, four of the seven newly elected councillors (and the CAO and Director of Finance) had resigned, denying the remaining three a quorum to conduct municipal business. With by-elections months away, the “Communities” Minister “allowed” the mayor and two remaining councillors (one of whom was the mayor’s spouse) to act as if they had a quorum. Such an interjection is more the exception than rule, but does underscore ways provincial authorities can intervene.¹⁸ The case of Rob Ford’s last months as Toronto’s mayor (before the October 2014 municipal elections), also highlights limits on provincial intervention, even when local dysfunction seems the local norm.

Yet the record shows that mayors, even when facing opposition from council members, can accomplish a good deal “if they are competent, shrewd, and, most important, popular with the electorate.”¹⁹ A number of colourful and long-serving mayors certainly “put their stamp” on their cities, with names like Elsie Wayne of Saint John, Stephen Juba of Winnipeg, and Jean Drapeau of Montreal coming readily to mind. Colourful mayors are still plentiful if we can judge by the results of a 2004 contest for craziest mayor run by Rick Mercer’s *Monday Report* on CBC TV.²⁰ The winner was Saskatoon’s mayor, Don Atchison, who began his term by proclaiming that anyone who wanted to see him at city hall had to come in business attire. Reminded that he had campaigned on a platform of being “the people’s mayor,” he soon rescinded the dress code. Surprisingly, he won over such likely prospects as St. John’s irascible Andy Wells and Houston, BC’s mayor, Sharon Smith, who posed nude except for her chain of office in pictures that somehow found their way into the public domain.

For longevity, accomplishments, and colour, it is hard to imagine a better example than Hazel McCallion of Mississauga, whose political skill in responding to financial pressures was mentioned in Chapter 7. Her career demonstrates how personality and temperament can forge an indelible public image (see Box 8.1).²¹

18 See, for example, Justin McIlroy, “Lanzville’s Shrinking Council in Turmoil,” *BC Global TV News*, May 29, 2015.

19 Allan Levine (ed.), *Your Worship: The Lives of Eight of Canada’s Most Unforgettable Mayors*, Toronto: James Lorimer and Company, 1989, p. 2.

20 The description that follows is based on Saskatoon (CP), *Saskatoon’s Mayor Dubbed “Craziest,”* February 3, 2004.

21 See Tom Urbaniak, *Her Worship: Hazel McCallion and the Development of Mississauga*, Toronto: University of Toronto Press, 2009.

BOX 8.1

HURRICANE HAZEL²²

In November 2010, Hazel McCallion was re-elected, at age 89, to what she called her last four-year term as mayor. She was mayor of Mississauga from 1978 to November 2014 and presided over a period of rapid growth during which the city has remained debt-free. Her public image was established early in her career by her response to an incident in November 1979, when a chemical laden CPR train went off the tracks at a Mississauga crossing, forcing the evacuation of a large portion of the city. Early on in the weeklong drama, McCallion injured a leg, but she remained on the scene throughout, hobbling around on a cane. The perception of her as tough and graceful under pressure was fixed forever, and she remained a formidable figure, legendary for her seven-day work week and apparently boundless energy. When she was back at work only a couple of days after being hit by a pickup truck in February 2003, this incident only served to reinforce her image of invincibility. She is a member of the Order of Canada and placed second (out of 65 mayors shortlisted) in a 2005 World Mayor Project.

THE ADMINISTRATION

In addition to council, the municipal governing machinery includes the appointed staff, responsible for administering the programs and policies of council and assisting council in making decisions by providing expert advice. There is, of course, a tremendous variation in the number and organization of staff, depending on the population of the municipality and range of functions. At one extreme, increasingly rare, is the staff of one, perhaps part-time at that. This person may act as clerk, treasurer, tax collector, by-law enforcement officer, building inspector, and dog catcher, while performing a variety of other duties—and all without any formal job description whatsoever (see Box 8.2).

22 The following description is largely based on Jim Coyle, “Hazel’s World Reigns Supreme,” *Toronto Star*, October 11, 2000; John Barber, “Hurricane Hazel Going Strong at 80,” *Globe and Mail*, February 12, 2001; Jim Coyle, “Mayor Hazel 1, Pickup Truck 0,” *Toronto Star*, February 18, 2003; and D’Arcy Jenish, “Hurricane Hazel: Going and Going and Going,” *Forum*, Federation of Canadian Municipalities, November/December 2005.

BOX 8.2

CARREL THE CRUSADER²³

André Carrel wasn't the dog catcher, but he couldn't find one anywhere, so he was stuck with the responsibility for doing something when a pack of stray dogs became a serious problem during his first municipal job in Fort Simpson in the Northwest Territories. He got that job, as secretary-manager, in 1970, because the other applicant for the position couldn't type and he could. He could also fire a gun and that is how he addressed the dog problem after some small children were attacked. Carrel's next position was as city manager of Dawson City where he learned that a municipal manager who hoped to survive in a hostile political environment "needed to be one-quarter lawyer, one-quarter accountant, one-quarter engineer, and three-quarters son-of-a-bitch." He left Dawson City in 1981 to become the first full-time executive director of the Association of Yukon Communities, headquartered in Whitehorse. From there, he moved to the senior staff position in Rossland, British Columbia, where he played a key role in that municipality's innovations in direct municipal democracy (discussed in Chapter 9). While municipal staff are known to wax eloquent about the latest budgeting or managerial technique, Carrel is unusual in that his passion is the importance of municipal democracy and of the central role that must be played by local citizens, as outlined in his already cited book, *Citizens' Hall: Making Local Democracy Work*.

At the other extreme is the staff of thousands, grouped into 20-odd functionally specialized departments, with job descriptions and operating manuals and an elaborate hierarchy. In this instance, the municipality obviously has much greater staff resources and expertise available. Bigger is not always better, however, and it is often difficult to draw these resources together into a coordinated operation.

Traditionally, there has been a requirement for municipalities to appoint certain statutory officers, but new legislative requirements in several provinces have removed or reduced this requirement, ostensibly to provide municipalities with flexibility to develop staffing

23 Based on information provided in Carrel, *Citizens' Hall*, especially Chapter 2.

arrangements that best meet their needs. For example, 1998 amendments (Bill 31) in BC eliminated the required titles of municipal clerk, regional district secretary, and treasurer, but gave formal recognition to the position of chief administrative officer. Ontario's *Municipal Act 2001* required the appointment of a treasurer and clerk, but neither needed to be an employee of the municipality—a change that facilitates the currently popular philosophy of contracting out municipal services.

A brief look at the roles of staff indicates that they are closely related to the roles of councillors cited earlier.²⁴ The most obvious role is to administer the policies and programs of the municipality. Those staff directly involved in the provision of services are the ones with whom the local public most often have contact. As a result, such staff also have a public relations role because most citizens form their opinion of their municipal government on the basis of the chance encounters that they have with municipal staff. In the course of this public contact, staff often find themselves acting as brokers or arbiters of conflicting local interests, seeking to find common ground. According to David Siegel, senior staff (especially CAOs) have three very important roles:

1. *Leading Down*: Managing and supervising the staff and their departments or sections (power through control)
2. *Leading Out*: Dealing with local interests and media, negotiating, being proactive with other governments (power through influence)
3. *Leading Up* (the most difficult): Advising council on policy matters, mediating, negotiating, and inspiring confidence (also power through influence)²⁵

These general roles in no way convey the magnitude and variety of responsibilities of a municipal official. When one of the authors was teaching an Internet course a few years ago, one student email did a much better job of illuminating the work involved, and it is reproduced in Box 8.3.

24 This discussion is partly based on C.R. Tindal, *Municipal Administration Program*, Unit Two, Association of Municipal Managers, Clerks, and Treasurers of Ontario, 2010.

25 David Siegel, *Leaders in the Shadows: The Leadership Qualities of Municipal Chief Administrative Officers*, Toronto: University of Toronto Press, 2015.

BOX 8.3

ALL IN A (HALF) DAY'S WORK

Today, as Town Manager, I wrote a letter to our local seniors group to renew a lease agreement (which I also re-wrote), got a flu shot, reviewed our Municipal Emergency Plan with our local Disaster Services rep, agreed to co-facilitate a Disaster Training exercise with a neighbouring community, set up a public meeting to establish a local Community Health Council, confirmed attendance at a weekend strategic planning session with the local Health Region, reviewed the minutes of last night's council meeting and delegated some assignments, telephoned our contractor about the delay in material shipment of a Public Works building expansion, set up a meeting with an engineer to complete a site review of a municipal commercial development, met with the mayor and a local community group president about an outstanding issue, met with our police Sgt about his need for additional hours to clear a backlog of tickets on the computer system, completed changes to a Traffic Control by-law as a result of last night's council meeting, and explained to my Public Works foreman why he might not be getting a new grader next year ... and I did all this before lunch.

CHANGING COUNCIL-STAFF RELATIONS

The council-staff relationship—and the operation of municipal government in general—is complicated by the difficulty of striking a balance between the concerns and emphasis of the politicians and the professionals. In theory, the latter serve at the behest of the former, lending their expertise to the development and implementation of policy decisions made by the politicians. Rather than political and professional perspectives blending in the service of the local community, however, they have often appeared to operate at cross purposes. Increasingly, the claims of professionalism, and the associated emphasis on improvements in efficiency, have come even more strongly to the forefront—to the relative neglect of political considerations and the associated emphasis on serving the public interest and local democracy. A brief review will illustrate how this pattern evolved over time.

RECONCILING POLITICS AND PROFESSIONALISM

The notion of professionalism in the local public service arose in both North America and Britain as a result of concerns about whether local governments could handle the increased responsibilities that they were acquiring as a result of industrialization and urbanization. As early as

the mid-19th century, British reformers worried about corruption and nepotism in local government and criticized the fact that “new public works projects and new regulatory powers created conditions conducive to corruption and the capture of municipal officers by local interests.”²⁶ In response, they encouraged the development of a professional corps of staff who would be immune to inappropriate local pressures.

The push for professionalism in North America arose during the reform movement, now more than 100 years ago. Like the earlier British reforms, the impetus was a reaction against corruption and inefficiency in local government operations. As discussed in Chapter 2, reformers sought to replace patronage appointments and the spoils system with a municipal public service appointed for their technical qualifications. The belief that sound administration could solve municipal problems was reinforced by a scientific management movement that also developed in the early 20th century and promoted the benefits of general management principles.

Because much of the professionalization developed in response to the expansion of local responsibilities, it was specialized in nature and was focused on separate technical disciplines such as public health, social work, planning, and education. But the specialized knowledge that was a key feature of each of these professions also made their members insular, protective of their turf, and resistant to coordination, with the result that local governments were “in essence loose confederations of semi-autonomous empires.”²⁷

Central authorities in Britain and North America supported and encouraged professionalism in local government as a way of achieving minimum standards and consistency in the provision of services. They saw professionalism as a countervailing force to localism. It advanced the standardization favoured by central governments at the expense of local autonomy and diversity.²⁸ The impact on British local government following World War Two is described by John Stewart in the following terms:

The politics of consensus was based on acceptance of the universalism of expertise and knowledge. Councillors of all parties had confidence in the services and in the advice given by officers on their development. Officers put their faith in established professional practice. Universal solutions based on expert knowledge were pursued for what were seen as common problems for all local authorities. There was little apparent need for local government, local choice or local democracy.²⁹

26 Martin Laffin and Ken Young, *Professionalism in Local Government*, Harlow, UK: Longman, 1990, p. 13.

27 T. Smith, *Town and Country Hall*, London, UK: Acton Society Trust, 1966, p. 29.

28 Laffin and Young, *Professionalism in Local Government*, p. 17.

29 John Stewart, *The New Management of Local Government*, London, UK: Allen & Unwin, 1986, p. 10. See also J.A.G. Griffith, *Central Departments and Local Authorities*, London, UK: Royal Institute of Public Administration, 1966.

The experience in Canada was similar, with the desire to maintain minimum standards in the provision of services leading not only to an emphasis on professionalism and consistency, but also to an increase in provincial supervision and control. Specialists at the local and provincial levels often felt allied in a common cause in furtherance of their particular discipline. Both the fragmentation of local administration and the strong links between local and provincial professionals were reinforced over the years by provincial grants that ensured expenditures on specified functions and by the isolation of functions into separate special purpose bodies—such as school boards, planning boards, and health boards.

Inherent in the professionalism of municipal staff was the sense of a commitment to certain public service ideals, including the protection of the public interest. This concept has been associated with the historic office of British Town Clerk for well over a century.³⁰ How it is interpreted today varies widely, but some senior staff believe that they have an obligation to argue against councillor views that they feel are misguided. Some staff have experienced “a sense of belonging to a public service which was both larger and more continuous than their immediate service with their current council suggested.”³¹ Taken to an extreme, the commitment to professionalism can be viewed as a kind of countervailing force that exists to limit or moderate political power in the interest of local democracy. From this perspective, “professional officers have a duty to moderate and constrain any abrupt policy changes thrown up by local politicians.”³² However, staff who take this position to an extreme may find that “their immediate service with their current council” doesn’t last as long as they had expected or desired.

Given their background and expertise, municipal staff may understandably feel that they have the best grasp of matters requiring policy action by council. It may seem to them that some of the policy ideas being championed by individual councillors are little more than an attempt to placate or please some specialized segment of the local populace. If they hold these views strongly enough, senior staff may resist the policy overtures of councillors and use a variety of tactics to thwart those that they find unworthy.³³ Anthony Downs, in *Inside Bureaucracy*, describes this bureaucratic resistance to innovative policy change.³⁴ If that doesn’t work, staff still have a great deal of influence because of their role in

30 T.E. Headrick, *The Town Clerk in English Local Government*, London, UK: George Allen & Unwin, 1962.

31 Laffin and Young, *Professionalism in Local Government*, p. 75.

32 *Ibid.*, p. 77.

33 Masson and LeSage, *Alberta’s Local Governments*, p. 222. See also T. Morley, “The Justice Development Commission: Overcoming Bureaucratic Resistance to Innovative Policy Making,” *Canadian Public Administration* 19, March 1976, pp.121–39.

34 A. Downs, *Inside Bureaucracy*, Boston, MA: Little, Brown, 1967.

researching and recommending a specific course of action. Wallace Sayre and Herbert Kaufman argue:

... the amount and kind of information, the method of presentation, the manner in which alternatives are identified and appraised, and the making of, or abstention from, recommendations—all provide opportunities for the bureaucracies to impress their own discretion and preferences.... The object is constant; to guide the official's decision into the channels that the bureaucrats regard as wise and prudent.³⁵

In fairness to staff, the policy direction provided by council is often far from clear. There may be a variety of different and even contradictory policy signals provided by individual councillors, since the absence of a governing group within the council (with the exception of municipalities in Quebec and a very limited number in British Columbia) makes it difficult to develop a coordinated position. Sometimes the only way for councillors to achieve such a position is to compromise until the policy direction has become vague enough to avoid offending anyone. Even when members are not divided, they may still find it difficult to identify precisely what they want from staff. With respect to matters such as land-use planning and economic development, staff may be told: “This is the sort of direction we want to move in. We would like you to negotiate with the relevant groups and do the best you can to move us in that direction.”³⁶ When council essentially abdicates its policy-making responsibility in this manner, staff are placed in an ambiguous and difficult position.³⁷ In addition, there are situations in which the policy intentions of council are, at best, misguided, or are without legal authority, and staff have a responsibility to object in these situations.

How far staff should go in providing policy advice is also open to debate. On the one hand, they are expected, as professionals, to provide an objective and dispassionate analysis of the facts—although Charles Lindblom and others have pointed out that there is no such thing as a decision based solely on the facts because facts are assembled, analyzed, and presented by people, individuals with their own backgrounds, experiences, values, and judgments that inevitably colour what is presented.³⁸ On the

35 Wallace S. Sayre and Herbert Kaufman, *Governing New York City*, New York, NY: W.W. Norton, 1965, pp. 420–21.

36 David Siegel, “Politics, Politicians, and Public Servants in Non-partisan Local Governments,” *Canadian Public Administration*, Spring 1994, p. 9. See also his *Leaders in the Shadows*.

37 T.J. Plunkett and G. M. Betts, *The Management of Canadian Urban Government*, Kingston: Queen's University, 1978, p. 161.

38 Charles Lindblom, *The Intelligence of Democracy*, New York, NY: The Free Press, 1965, pp. 138–43; and Richard S. Rosenblom and John R. Russell, *New Tools for Urban Management*, Boston, MA: Harvard University Press, 1971, p. 229.

other hand, councils often express displeasure at advice that they regard as unrealistic, “pie in the sky,” and not sufficiently sensitive to local political realities. Staff who provide advice that is technically sound but politically problematic are often criticized. Yet those who temper their advice to take into account political considerations may be criticized just as strongly by councillors who feel that all political considerations are their prerogative and preserve.

Siegel cautions that the more staff modify their advice in response to their perception of local political realities, the more their neutrality is compromised.³⁹ If their advice shows a sensitivity to the views of a majority of councillors, then they may antagonize the remaining councillors whose views were apparently not given as much weight. If they focus too much on providing advice that will be acceptable to council, they may recommend what they think council wants to hear rather than what it should hear—which is not a desirable state of affairs. When staff know that their best technical and professional advice will not be politically acceptable to council, Siegel suggests the following:

Public servants should recommend what they see as the best course of action for the municipality from their administrative perspective, regardless of its political consequences for any particular councillor or even for council as a whole. It is important for council to have the best possible objective and professional advice. If there are political factors to be injected into the decision-making process, it is council’s job to introduce them.⁴⁰

The relationship between council and staff does not get any easier with respect to the implementation of policy. The staff have the primary role when it comes to enforcing by-laws, delivering programs, or administering services to the local community, but councillors also have a responsibility to provide a general oversight of these activities—to ensure that policies are being implemented as intended and with due regard for the tax dollar. As K.G. Crawford explains so well, different perspectives on the implementation of policy cause an inevitable tension between a council and staff in connection with policy implementation.⁴¹ He points out that members of council are constantly approached by individuals who feel they are unfairly dealt with under the general application of municipal policies and regulations. They attempt to persuade the councillors that their case merits special consideration.

39 The discussion in this section is based on Siegel, “Politics, Politicians, and Public Servants,” pp. 26–28; and *Leaders in the Shadows*.

40 Siegel, “Politics, Politicians, and Public Servants,” p. 27.

41 K.G. Crawford, *Canadian Municipal Government*, Toronto: University of Toronto Press, 1954, pp. 165–66.

Because he is elected to represent the people and under the system of popular election his political life depends on keeping his people satisfied, and because the individual's claim is usually plausible, the representative tends to be more concerned with the exceptions than the rule. The permanent officials, who in most cases have been long in office and expect to continue there, are more conscious of the difficulties which result from making exceptions to general rules and, in the interest of equity to all, tend to resist requests for special treatment.⁴²

The fact that elected and appointed personnel approach situations with a different background and perspective complicates their relationship, but the relationship can also be positive and productive. It is widely perceived, for example, that politicians are keen to push ahead with new approaches, while staff are likely to encourage caution and respect for established ways of doing things. Too much of one approach or the other can be problematic, creating a tendency toward excessive change or stagnation, but together these tendencies can create a healthy tension that generates new ideas but also subjects them to thorough examination.

A recent analysis by Ashton, Kushner, and Siegel examined differing political and staff perspectives in Ontario municipalities. It sought to determine if there are personality differences between elected and appointed personnel at the local level, reasoning that any such differences are important because of the close interaction of councillors and staff and the fact that much of it takes place in public meetings where these differences will be evident. While the differences were not as great as might have been anticipated, the analysis found that politicians are more outgoing and sociable and more curious and imaginative, while staff are inclined to be more focused on internal aspects of the municipality and its efficient operation.⁴³

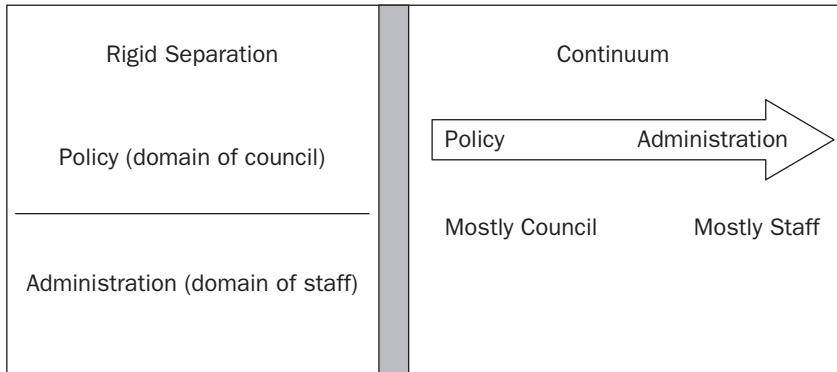
CLARIFYING ROLES AND RELATIONSHIPS

For much of the 20th century, efforts to clarify and improve the council-staff relationship tended to focus on the strict separation of the roles of council and staff, the former setting policy and the latter implementing it, as depicted in Figure 8.2. As will be discussed, this politician-administration dichotomy was reflected in the city manager (or council manager) governing model that became very popular in the United States and enjoyed more limited success in Canada.

⁴² *Ibid.*

⁴³ A number of potentially different personality traits are examined in Michael Ashton, Joseph Kushner, and David Siegel, "Personality Traits of Municipal Politicians and Staff," *Canadian Public Administration*, Summer 2007, pp. 273–89.

Figure 8.2 Two Views of Policy and Administration



But a complete separation of policy and administration is artificial and prone to problems. It is not always evident whether something is a policy matter, and items that first appear to be of a routine administrative nature can quickly develop policy and political implications. This is reinforced by a Supreme Court of Canada ruling—on the powers of British Columbia’s Ombudsman—on “what is a matter of administration”: the court ruled that virtually “anything that governments do” is a matter of administration. Similarly, much of what it does is also policy.⁴⁴

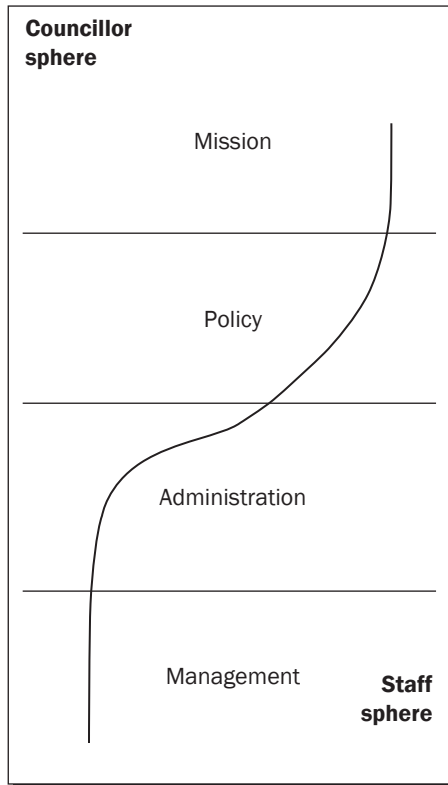
Moreover, since most policy arises from ongoing administration, too rigid a separation leaves councillors trying to make policy in a vacuum. As a result, there developed a growing appreciation that policy and administration should be viewed as a continuum (also illustrated in Figure 8.2), with councillors more involved at one end and staff more involved at the other, and recognizing points of clear overlap.

James Svava provides a more refined version of the continuum view of staff and council roles by identifying four dimensions of the governmental process, and showing how councillors and staff are involved in these dimensions to varying degrees.⁴⁵ As he sees it, councillors are particularly involved in setting out the purpose and mission of the municipality and in enacting policy, while staff play the predominant role in administration and management, leading to their combined involvement in the government process as illustrated in Figure 8.3.

44 On this case, see *British Columbia Development Corporation v. Friedman (Ombudsman)*, [1984], 2 SCR. 447; and Patrick Smith, “Fairness Inc.: Administrative Justice in British Columbia: The OmbudsOffice @ 30,” in Stuart Hyson (ed.), *Provincial and Territorial Ombudsman Offices in Canada*, Toronto: University of Toronto Press, Institute of Public Administration of Canada, 2009, Ch. 3.

45 James Svava, “Dichotomy and Duality: Reconceptualizing the Relationship between Policy and Administration in Council-Manager Cities,” *Public Administration Review* 45, 1985.

Figure 8.3 Councillor Sphere



The changing nature and context of municipal operations is reflected in the changing roles of the manager. As governments shifted their focus outward, to possible partners in the broader community, staff assumed new roles as broker and negotiator. By the 1990s, the International City Management Association's expanded list of manager roles included the following:⁴⁶

- Consensus builder, translator, and interpreter of community values
- Convenor of interested parties and diverse community groups
- Change agent
- Facilitator of conflict resolution
- Champion of leadership development within the community
- Educator on community issues

46 Jane G. Kazman, *Working Together, A Guide for Elected and Appointed Officials*, Washington, DC: International City Management Association, 2000, p. 17.

- Problem solver
- Process leader
- Team builder/mentor
- Source of empowerment
- Champion of new technologies
- Bearer of ethical standards

This range of roles is quite broad, and one could question whether such matters as interpreting community values, convening diverse community groups, and building consensus are more properly roles of councillors. But the list serves to illustrate the simplistic nature of earlier characterizations that essentially limited the roles of staff to advising on and implementing policy. The reality is that few matters are purely administrative and few matters are only policy—a view reinforced by renowned UK/Australian local government expert, Peter Self.⁴⁷ David Siegel would agree: in his *Leaders in the Shadows* (2015), he concludes, “the best decisions made by local governments are a melding of the two perspectives.”⁴⁸

Modifications to the Municipal Machinery

The internal governing structure of a municipality can influence the way in which councillors and staff carry out their roles and interact. A number of governing structures found in Canadian municipalities at both council and staff levels are briefly summarized below, beginning with the most basic—and historically most common—model, the standing committee system. The changes to governing machinery introduced over the years have mainly involved the introduction of executive committees to improve coordination and executive direction at the council level and coordinating officers to improve coordination and leadership at the staff level. The former have not been very effective, for the most part. The greater success with coordinating officer models has contributed to the service delivery and efficiency objectives of municipal government, but somewhat at the expense of its political and representative role.

THE STANDING COMMITTEE SYSTEM

This governing model features the establishment of a number of ongoing committees, each focused on a major functional area of operations. The committees are normally responsible for overseeing the operations of one

47 See Self, *Administrative Theories and Politics*, Ch. 8.

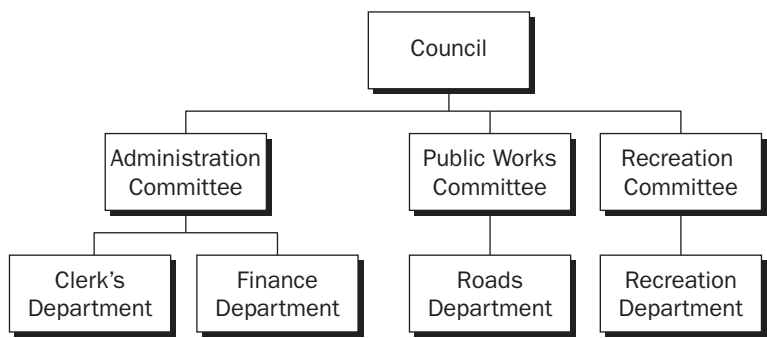
48 Siegel, *Leaders in the Shadows*.

or more departments within their area and for making recommendations and presenting reports as requested by council—although sometimes the committees exercise only this latter, policy advisory role. They are composed of councillors, and may also include (infrequently) some citizen members. These committees are usually created entirely at council’s discretion, and are not to be confused with the statutory committees and boards set up under the authority of provincial statutes. Examples of the latter would be committees of adjustment and land division committees that exercise planning responsibilities at the local level in Ontario. A typical committee system is depicted in Figure 8.4.

The use of a standing committee system is held to be advantageous because it speeds up work in council since the committee sifts through the details of an issue and presents a positive recommendation to council. It allows councillors to specialize in the areas of administration under the jurisdiction of their committees rather than trying to be knowledgeable in all fields. It is also alleged that the informal atmosphere of a committee meeting encourages more “give and take” in debate, facilitates participation by municipal officials, and also provides a good opportunity for interested groups or individuals to be heard. In this latter connection, it is argued that the delay built in when matters are referred to committee gives public opinion a chance to develop and to be heard and guards against overly precipitous action.

However, there are also a number of alleged disadvantages of the standing committee system. While some delay in decision making may be beneficial, referrals from council to one or more committees and back to council can create a very slow process and the opportunity for “passing the buck.” If committee discussions are duplicated in council, much time is wasted and the value of the committee’s specialized scrutiny is lost. There are often too many committees, with the result that a councillor’s

Figure 8.4 Standing Committee System



already limited time is seriously overburdened. An associated problem in many smaller municipalities is the tendency to establish standing committees when they are not necessary given the volume of work. Often such committees have no terms of reference, no regular schedule of meetings, and no systematic procedure of reporting to council. As a result, they are not an effective addition for managing the municipality.

Another criticism, of particular relevance for the ensuing discussion, is that standing committees tend to reinforce the departmentalization inherent in the municipal organization and thus contribute to a fragmented outlook. This is because members of a committee may put the interests of their particular department or departments first—an attitude that is hardly conducive to a coordinated approach or to a broad view of the municipality’s needs. Often difficulties arise in this respect because the committee system has simply expanded with the increase in municipal departments. Yet the departments themselves may have grown without sufficient forethought, and if this structure is poorly organized for coordination, then what can one expect from a committee system similarly designed? Finally, it is argued that committee members tend to become overly preoccupied with matters of administrative detail and internal management of the departments under their jurisdiction. This is a common problem with councils generally, but it is felt to be accentuated by the greater contact and familiarity with administration that the specialized scrutiny of committees permits.

EXECUTIVE COMMITTEES

Over the years the most persistent method of attempting to provide political leadership and coordinated direction has been the establishment of executive committees of council. An early and prominent version of this structure was the board of control, introduced as part of the turn-of-the-century reforms more than 100 years ago. This model was quite widespread in Ontario during the first half of the 20th century. Other forms of executive committee were established—at least initially—in a number of large cities or metropolitan municipalities in an effort to duplicate a cabinet organization and a semblance of the parliamentary system. What was often missing here throughout Canada was any local party system paralleling that found in senior-level parliamentary settings—an issue assessed in our concluding chapters.

BOARD OF CONTROL

As described in Chapter 2, the board of control first appeared in Canada in the City of Toronto in 1896. It was not really a board, but

a statutory executive committee of council, assigned important responsibilities relating to such matters as budgets, contracts, and staffing. Its recommendations could only be overturned or altered by a two-thirds vote of council (of which the controllers were voting members). While it didn't make much of an impact in other provinces, the board of control became mandatory for cities over 100 000 in Ontario, although it could be dispensed with by a two-thirds vote of council if affirmed by the Ontario Municipal Board.

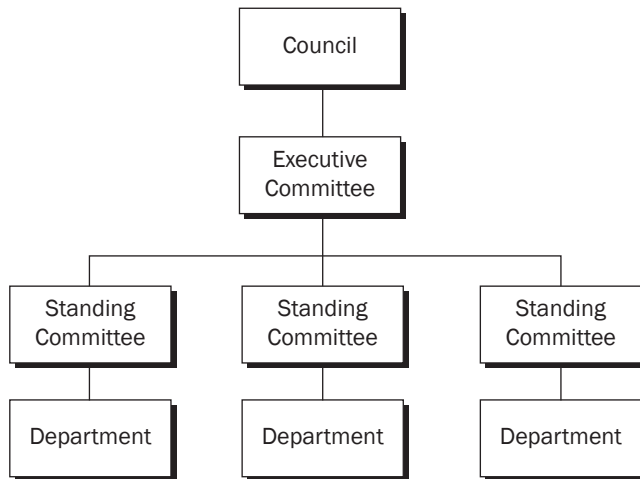
It was anticipated that the board of control would provide effective leadership and contribute to a more efficient management of the affairs of the municipality. But the board's similarity to a cabinet was superficial at best; instead of a body unified by the glue of party loyalty and discipline, the board was made up of individuals without necessarily any common purpose. With only four board members plus the mayor, the board became increasingly overburdened in attempting to oversee the administrative activities of the municipality and usually clashed with standing committees where they were retained. Most serious of all, however, was the friction between the board and the rest of council. The latter were particularly resentful of the two-thirds vote requirement for overturning board decisions. Gradually, municipalities took steps to abolish their boards of control, with the last one (in the City of London) disappearing at the end of the 2010 term of council.

OTHER FORMS OF EXECUTIVE COMMITTEE

A variety of other executive committees are found in Canadian municipalities. Some are similar to a board of control in having a statutory foundation, including those established in a number of the reformed local municipal structures. There are also non-statutory executive committees. By their nature they are much harder to categorize, especially since they do not always use the name "executive" committee. Their purpose is reflected in their composition, however, which usually comprises the chairs of the major standing committees in the municipality plus the head of council, and in their mandate, which usually includes responsibility for the budget and for providing leadership and coordination. Figure 8.5 illustrates this government structure.

Montreal is likely the Canadian city with the longest experience with an executive committee, since there are references to such a body as early as the 1850s. By the 1960s, this committee had evolved into a powerful position because of the emergence of dominant political parties within Montreal's council. For example, during Jean Drapeau's long tenure as mayor (1960–1986), his choices for members of the executive committee were ratified by a council controlled by his Civic Party, and the

Figure 8.5 Executive Committee System



committee could initiate actions with every expectation that it would be supported by the council. The cities of Quebec, Hull, and Laval established executive committees in the 1960s, after studies that found that their government machinery exhibited weaknesses of excessive council involvement in administrative detail, lack of executive direction, and uncoordinated administration. As with the situation in Montreal, the existence of local political parties within the municipal councils of these three cities provided a basis for strong political leadership.

In contrast, the executive committee established by the Municipality of Metropolitan Toronto in 1954 was unable to provide strong leadership. It was composed of the chair of the metro council, the mayors of the six lower-tier municipalities in the system, and seven other specified representatives from the lower-tier councils. With that many members, serving by virtue of a prior position elsewhere in the municipal structure, and without the unifying force of local political parties, the executive committee lacked cohesion or common focus, and also lacked a support base within the rest of council. This did allow for stronger individual leadership via the head of Metro—Frederick “Big Daddy” Gardiner.⁴⁹

Similar constraints continued to affect the executive committee set up in the new City of Toronto, which came into existence in 1998. Known as the Strategic Policies and Priorities Committee, this body (no longer in existence) was made up of the chairs of Toronto’s five standing committees, the chairs of its six community councils, the deputy mayor, the

⁴⁹ See Tim. J Colton, *Big Daddy*, Toronto: University of Toronto Press, 1980.

budget chief, and the mayor of Toronto. It was almost as large as a cabinet, but lacked cohesiveness and common purpose and depended upon the willingness of members to cooperate and work together.

As discussed earlier in this chapter, a new form of executive committee was created for Toronto in advance of the new *City of Toronto Act*. Headed by the mayor, it includes the chairs of the standing committees and the deputy mayor—they make up 8 of the 12 members and are all appointed by the mayor as part of an initiative to strengthen this position. But there is no assurance that a council of 45 members, not elected on any party basis, will endorse positions taken by the mayor or the executive committee—as evidenced by earlier examples involving Mayors David Miller and Rob Ford. Toronto mayor John Tory so far has avoided such outcomes during his 2014–2018 term. Executive committees face a dilemma with respect to the extent of their power. The board of control model was rejected because it was seen as too powerful, owing to the two-thirds vote provision. Executive committees backed by political parties can be quite powerful (just as they have always been at the provincial and federal levels where they operate as the cabinet), but with the exception in the province of Quebec (and in a few municipalities in British Columbia), voters have shown a great reluctance to support the introduction of political parties at the local level. In the absence of either of these options, we are left with executive committees that must rely on goodwill and persuasion to develop a position and then to obtain council support for it. While these may prevail on any one issue, they are hardly the basis for cohesion and concerted direction.

COORDINATING OFFICERS

Experiences with coordinating officers have been more varied, and more successful, than efforts to establish executive committees of council. The most common form of this position is the chief administrative officer, but it also embraces other forms of coordinating officer.

CHIEF ADMINISTRATIVE OFFICER SYSTEM

The Chief Administrative Officer (CAO) is found under a variety of names and with a variety of powers and responsibilities. Titles used include city administrator, city manager, commissioner, chief commissioner, and director general. T.J. Plunkett uses the term CAO to encompass all types of structure (including manager systems) that have a single appointed officer as head of the administration. On this basis, he found that by 1989 some 170 urban municipalities in Canada had adopted

this structure.⁵⁰ Among the larger cities in this category were Vancouver, Edmonton, Calgary, Saskatoon, Regina, Winnipeg, Windsor, Hamilton, Toronto, Ottawa, Sudbury, Quebec City, Saint John, Halifax, and St. John's.⁵¹

The earliest and most powerful form of CAO is that of the city manager or council manager system, which spread into this country from the United States in the early 1900s. The first Canadian city manager was appointed in Westmount, Quebec, in 1913; the system is still found mainly in Quebec, where legislation has authorized councils to appoint a manager since 1922. In contrast, not until a 1970 amendment did Ontario's *Municipal Act* give municipalities the authority to appoint any type of CAO. While the number of CAO positions has increased markedly since, most are not full-fledged managers but rather weaker forms of coordinating officer or expanded clerk-treasurer, as described below.⁵²

THE COUNCIL MANAGER SYSTEM

As it developed in the United States, this system is predicated on a complete separation of the policy and administrative activities of the municipality. It involves the appointment of a professional administrator (the manager) to whom is delegated complete responsibility for administering the programs of the municipality, including the coordination and supervision of all staff. The council, usually small in number, is elected at-large and directs its attention to its representative role and the formulation of overall policies for the municipality. In the “pure” council manager systems found in the United States, there are not usually any standing committees and therefore not any regular council contact with the administration except through the manager. The relatively simple, compact structure is depicted in Figure 8.6.

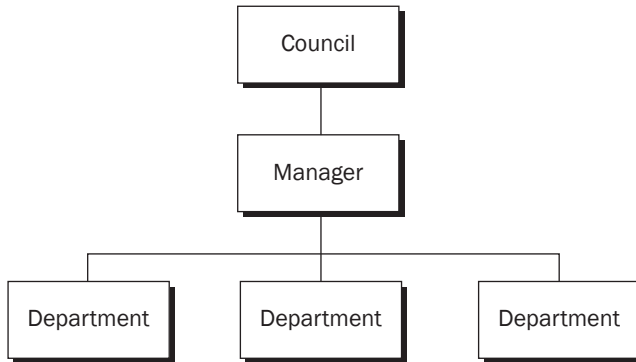
Proponents of the council manager system contend that it provides for greatly improved coordination of administrative activities, frees the councillors from unnecessary detail, and allows them to concentrate on their primary role of policy making. While there is considerable potential for improved coordination in the organization of the manager system, its greatest weakness is the premise on which it is based—that it is possible to separate policy and administration in municipal government. To the contrary, as discussed earlier in this chapter, it is very difficult to identify

50 T.J. Plunkett, *City Management in Canada: The Role of the Chief Administrative Officer*, Toronto: Institute of Public Administration of Canada, 1992, p. 21.

51 *Ibid.*, p. 25.

52 David Siegel, “The Leadership Qualities of Municipal Chief Administrative Officers,” *Canadian Public Administration*, Summer 2010, pp. 139–61. This topic is explored in more detail in Siegel's *Leadership in the Shadows*. It is drawn upon in this discussion.

Figure 8.6 Council Manager System



in advance whether a particular issue is a routine administrative matter or has political implications. Even if this distinction could be made, it is not desirable to rigidly separate the two activities. In practice, much policy arises out of ongoing administration and the council's complete separation from the administrative activities of the municipality can leave it ill-informed and "making policy in a vacuum."

While the system provides for a more efficient administrative structure, it does not provide for strong political leadership. Here, the distinction between efficiency and effectiveness, pointed out by Peter Drucker, comes into play; for Drucker, "efficiency is doing things right; effectiveness means doing the right things."⁵³ Indeed, because of the focus on the manager, he or she is often a more conspicuous public figure than the members of council including the mayor—a point reiterated by Siegel.⁵⁴ In addition to producing friction and jealousies that frequently result in the dismissal of managers, this situation also leads to managers becoming publicly identified with particular viewpoints and policies. If, as a result, they become embroiled in political controversies, their role as administrative leaders is impaired and they will likely be replaced. One book dryly observes that a manager's departure from work is often the result of illness or fatigue: "The council was sick and tired of him."⁵⁵

53 Peter Drucker, *The Essential Drucker: The Best of Sixty Years of Peter Drucker's Essential Writings on Management*, New York, NY: Collins Business Essentials, 2008; and *Management, Tasks, Responsibilities, Practices*, Piscataway, NJ: Transaction Publishers, 1973.

54 Siegel, *Leadership in the Shadows*.

55 Wayne Anderson, Chester Newland, and Richard Stillman, *The Effective Local Government Manager*, Washington, DC: International City Management Association, 1983, p. 68.

THE MANAGER SYSTEM IN CANADA

As adapted to Canada, the council manager system has undergone certain modifications that minimize some of the problems noted previously and, at the same time, minimize somewhat its strength and coordinating potential. Not surprisingly, these modifications reflect both the different governing principles of Canada and the United States, and the differing conditions that prevailed at the time of the system's introduction.

In most Canadian cities in the early 20th century, the need for such an administrative reform seemed less pressing or necessary than in American cities. Corruption and the worst excesses of local party politics were much less evident in Canadian cities, and appointments based on merit were much more prevalent. Moreover, administrative coordination was being achieved informally by utilizing the potential of certain key municipal positions, notably that of clerk and treasurer. Especially where the positions were combined in people with leadership skills, their overall knowledge of the municipality's operations and the influence inherent in their responsibilities for preparing agendas, background reports, minutes, by-laws, budgets, and financial reports often made them unofficial chief administrative officers. Some municipalities confirmed the coordinating potential of these positions by formally designating the clerk or treasurer as something more—resulting in such positions as clerk-comptroller, clerk-treasurer-administrator, and clerk-coordinator.

Even where the council manager system was adopted, the Canadian version usually incorporated certain features designed to maintain the significance and prestige of the elected council.⁵⁶ First, the Canadian council manager system does not attempt to enforce a complete separation between administration and policy. The council usually has a direct relationship with at least its main department heads as well as the manager. This is normally accomplished “by the attendance of the department heads at a meeting of a limited number of standing committees of council when matters affecting their particular areas of jurisdiction are under review.”⁵⁷ Second, the responsibility of appointing staff is exercised by council, not the manager, although often council only acts after receiving recommendations from the manager.

With such modifications, Dennis Young feels that the Canadian version managed to avoid the fundamental problem of council's complete separation from administration. He explains that council in a Canadian manager system continues to concern itself with administration, but “does so from a much broader viewpoint.” The advice and recommendations of staff are

56 See Dennis A. Young, “Canadian Local Government Development: Some Aspects of the Commissioner and City Manager Forms of Administration,” in Lionel D. Feldman and Michael D. Goldrick (eds.), *Politics and Government of Urban Canada*, Toronto: Methuen, 1976, pp. 276–78.

57 *Ibid.*, p. 277.

coordinated by the manager, and “it is this opportunity and ability to place such recommendations within the broader perspective of the city’s needs as a whole which represents his greatest value to the council in his capacity as policy advisor.”⁵⁸ This “advising up” role does require a particular skill set: Siegel suggests that to be successful, CAOs need the following:

- Integrity and respect
- Team-building skills
- Awareness about people
- Communicating and listening skills
- Understanding that councillors are in charge but may need professional advice
- Ability to act rationally but understand that there are political implications to what is recommended
- Refusal to accept the status quo but respect local customs/values
- Passion coupled with hard work.⁵⁹

THE COMMISSIONER SYSTEM

This system involves the appointment of a few commissioners, who are charged with supervising and coordinating the various departments under their jurisdiction. They may also meet as a board of commissioners under the direction of a chief commissioner, to provide overall coordination of municipal operations.

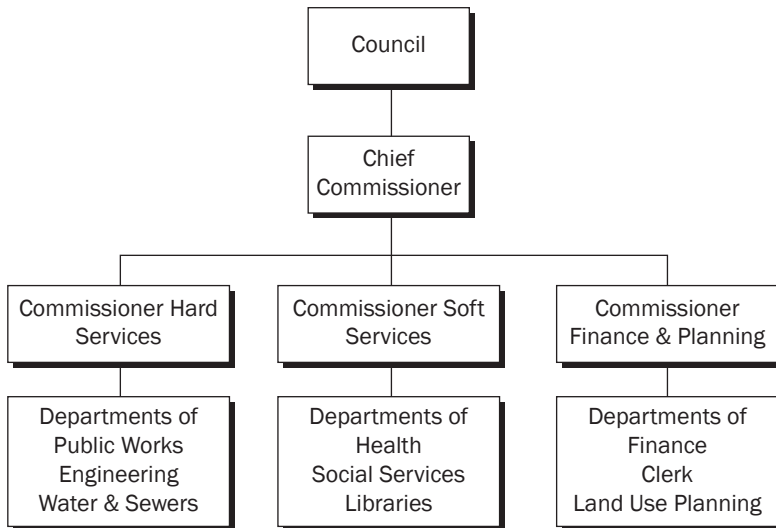
The commissioner system is similar to a council manager system except in two important respects. Policy and administration are not as completely separated under the commissioner system, particularly when the mayor sometimes sits as a member of the board of commissioners—although the wisdom and effectiveness of this combination has been a matter of some debate. The second difference is that having more than one commissioner permits a degree of specialization not possible under the manager system, where one person must supervise the entire administrative structure no matter how large and complex. Typically, one commissioner is responsible for hard services, another for soft services, and a third (if provided) for finance and planning, as illustrated in Figure 8.7.

The commissioner system was found mostly in Western Canada, but has gradually been replaced by manager or CAO positions over the past few decades. Some cities, such as Red Deer, Prince Albert, and Estevan, have appointed a single commissioner, in what amounts to a misnamed

⁵⁸ *Ibid.*, p. 278.

⁵⁹ Siegel, *Leadership in the Shadows*.

Figure 8.7 Commissioner System



manager system.⁶⁰ Others, such as Edmonton and Winnipeg, have abolished their commissioner systems (in 1984 and 1998, respectively) and replaced them with CAO systems. Ironically, as the commissioner system disappears in Western Canada, it is turning up in Ontario—albeit in modified form. The Ontario initiative involves the appointment of commissioners (also sometimes called directors) as senior staff in charge of groups of related departments. These senior staff may meet regularly with the CAO (and head of council) as a management committee, rather like the board of commissioners previously found in Western Canada.

This new model has appeared particularly in municipalities created as a result of Ontario's widespread amalgamations. It incorporates a distinction between internal, support services and services delivered to the public (or what used to be termed staff and line departments) and usually features four groups of related departments, along the lines of Table 8.1. Note the similarity with the commissioner groupings.

CANADIAN CAOS TODAY

Plunkett sees the growth of the CAO system in Canada as the result of the growth in municipal departments with the urbanization following World War Two and the recognition that the issues confronting municipal governments required more analysis and synthesis than could be provided through such a

⁶⁰ Plunkett, *Role of Chief Administrative Officer*, p. 53.

TABLE 8.1 NEW COORDINATING MODEL IN ONTARIO

<i>Hard Services</i>	<i>Soft Services</i>	<i>Planning & Development</i>	<i>Corporate Services</i>
Public works	Parks & recreation	Long range and strategic planning	Clerk
Transportation	Culture & heritage		Treasurer
Engineering	Libraries	Planning approvals	Legal services
Water/waste water	Seniors homes	Economic development	Human resources
Fleet & facilities	Emergency services		Computer services

fragmented departmental structure. He explains that most municipalities can now appoint a CAO under the general municipal legislation of their province.⁶¹

The success of any particular CAO will depend, in large part, on how well the individual is able to work with the diverse mix of department heads in the municipality. Some of these managers may have strongly opposed the introduction of a “senior coordinating officer,” while others may have unsuccessfully sought the position themselves. In either case, they are unlikely to welcome a new CAO or to support the position. If standing committees have been retained, department heads may attempt to use these as a buffer or a means of blocking CAO initiatives.

Plunkett suggests that relationships between CAOs and department heads tend to fall into three categories:

1. *Passive*: CAOs who simply forward, without comment, reports received from department heads.
2. *Active*: CAOs who include with departmental reports an accompanying memo setting out their comments.
3. *Dominant*: CAOs who hold back reports from departments until these conform to their general policy viewpoint.⁶²

The second category is probably the most common and certainly the most desirable. It ensures that both the technical knowledge of the specialist department head and the broader perspective of the CAO are sent forward, and it gives council the benefit of the most complete range of information on which to make a decision.

Another problematic relationship that can arise is between the CAO and the head of council, given the way the latter position is defined in

⁶¹ *Ibid.*

⁶² *Ibid.*, pp. 28–29.

provincial legislation. The potential for a clash exists if a mayor has a strong personality and a determination to provide “hands on” leadership consistent with his or her statutory authority to oversee subordinate officers and act as chief executive officer—as illustrated by the two examples in Box 8.4 and Box 8.5. While a CAO faced with such a conflict could appeal to council, which is ultimately responsible for the management of the municipality, such a course of action is by no means certain of success—especially since councillors are often inclined to view CAOs with suspicion and fear that they will become too dominant. As Siegel and others have noted, prudent CAOs make every effort to avoid an overt power struggle.

BOX 8.4

POWER PLAY IN OTTAWA⁶³

A classic example of mayoral interference through excessive hands on involvement can be found in the actions of Larry O’Brien, the former businessman who was mayor of Ottawa in 2006–2010. O’Brien’s multiple difficulties in settling into his new position demonstrate the fallacy of the popular notion that our problems can be solved by running municipal government like a business. Claiming the need to get city spending under control, the mayor announced his intention to take over the approval of all hiring and contracts of over \$10 000 until the end of 2007. Many members of council were less than enthused about this initiative (a sentiment shared by Ottawa’s CAO), and the mayor accepted instead a modified process in which he and the city’s CAO would jointly approve consulting contracts and any new hirings until the end of 2007.

Municipal expenditures are largely determined through an annual budget exercise carried out early in each year. There are well established procedures for the approval of individual expenditure items and for hirings within an approved staff complement.

There is no doubt that a city of Ottawa’s size and sophistication has such procedures in place. It also has a CAO who delegates authority to senior managers and holds them accountable for results—in the sort of managerial style that should appeal to a mayor with a business background. For the mayor to insert himself into city operations in this manner, essentially looking over the shoulder of the CAO, can only be viewed as a vote of non-confidence in the CAO and his senior staff that is likely to be harmful for morale.

O’Brien was defeated in the 2010 mayoral election.

63 This issue was widely covered in the media at the time. The description that follows is partly based on Jake Rupert, “Mayor Eases off City Hall Power Play,” *Ottawa Citizen*, September 5, 2007.

BOX 8.5

GRAVY TRAIN DERAILED IN TORONTO?⁶⁴



(c) Rick Madonik/ZUMA Press/Corbis

Toronto Mayor Rob Ford's core services review of 2011, undertaken to end what he called the municipal "gravy train" in the city, is a further example of a mayor's heavy-handed intrusion into municipal operations. A series of reports by KPMG costing almost \$1 million found few candidates for expenditure cuts that were not core municipal services—perhaps as little as \$10–\$15 million out of \$1 billion for public works, according to the City Manager. Under licensing, the report suggested that the city get out of the cat and dog licensing business and animal control. This lack of major gravy boats⁶⁵ to cut left the cutback-oriented Toronto mayor musing about wage cuts as an alternative approach. The impact of the Ford initiatives was highly polarizing in Toronto; in 2014, a new mayor, John Tory, was elected with a more modest and managerial agenda. The depleted currency of "Ford Nation" was demonstrated in the end of 2015 federal election campaign with a Conservative rally organized by the Ford brothers—and the outcome, a Liberal sweep of the city's federal constituencies.

64 On the series of KPMG Reports, see David Bider and Paul Moloney, "Little to Trim in Public Works," *Toronto Star*, GT1, July 12, 2011. Subsequent reports are also available on Economic Development, Community Development and Recreation, Parks and Environment, Licensing and Standards, Government Management, Planning and Growth Management and Executive Committee, including arm's length agencies and such. On cutting labour costs, see Elizabeth Church and Jill Maloney, "Ford Vows to Bring Down City's Labour Costs," *The Globe and Mail*, July 16, 2011, p. A8.

65 See Marcus Gee, "Municipal Spending: Mayor's Financial Numbers Don't Add up. With Cuts Looming, Rob Ford Seems to Prefer an Axe to a Scalpel," *The Globe and Mail*, July 16, 2011, p. A8.

No matter how effectively a CAO system may work, it provides administrative, not political, leadership. Indeed, this system may even act as a constraint on political leadership and on the local political process in general. It is widely held, for example, that council manager systems, “which emphasize the expert professionally trained manager as the effective executive,” pay less attention to citizen demands and concerns than do mayor-council systems under which such demands are expressed more directly through the political process.⁶⁶

NEW BUSINESS MODELS OF GOVERNMENT

The new public management movement and values (discussed in Chapter 9) influenced the introduction of business models of government that gained some popularity, particularly among larger municipalities over the past couple of decades.⁶⁷ Partly as a reaction against the silo perspective and turf protection mentality inherent in the traditional departmental structure organized on the basis of functional specialization, some municipalities restructured into core business areas, and then subdivided further into a number of business units for each area. These units were focused on the delivery of a particular municipal service, such as fleet maintenance, and were set up as separate cost/profit centres.

The rationale was that by bringing all activities associated with the delivery of a particular service into a single business unit, it would be easier for a municipality to determine the total cost of providing the service in question and to identify the total revenues (if any) arising from provision of the service. Isolating this financial information was seen as a necessary first step in promoting efforts to improve the cost revenue ratio and to move municipal operations closer to break even. The delineation of separate business units was also seen as an effective method of pin-pointing responsibilities and heightening accountability. Performance contracts that established service standards to be met were also designed to enforce accountability. Alternative service delivery arrangements might be pursued with respect to municipal operations that failed to “measure up.” Clearly, the new model was as much about different operating philosophies as it was about structure.

66 Harold Wolman and Michael Goldsmith, *Urban Politics and Policy: A Comparative Approach*, Oxford, UK: Blackwell, 1992, p. 76.

67 This discussion is partly based on C. Richard Tindal and Susan Nobes Tindal, *Guide to Good Municipal Governance*, St. Thomas, ON: Municipal World Inc., 2007, pp. 28–29.

One of the pioneers of the business model for municipal government was the City of Waterloo (Ontario) and, as discussed in Chapter 9, its experiences demonstrate the distinctive operating values underlying this model and the difficulty of reconciling these with other municipal values and objectives. Another example from Ontario is the amalgamated municipality of Chatham-Kent, which initially embraced a business model with the following features:

The Strategic Core reports to Council and is responsible for corporate and strategic planning, policy development, the business planning and budget process, and arranging the “contracts” or business plans with internal and external service providers that will directly provide services. The Service Centres are the “one-stop” contact points for residents and other clients requiring service from the municipality. The Service Delivery function will be carried out by Business Units within the administration or external contractors that will be responsible to deliver services at the level of service and level of cost agreed to by Council. The Strategic Core will monitor their performance. The Support Business Units will provide centralized services to all the other business units and provide input to policy and strategy development within the Strategic Core.⁶⁸

The outburst of business jargon that accompanied these reforms appears to have lost its momentum. Chatham-Kent reorganized in 2003 into four consolidated departments, although there are still 50 some operating divisions or operating units within this departmental framework, each responsible for a business plan. So the business philosophy continues but within a more traditional (understandable) structure. Windsor is another example of a municipality that reverted to departmental nomenclature after some years with business units.

This seems a sensible response and we would recommend that municipalities wishing to embrace this particular approach should concentrate more on these underlying changes in process and operating philosophy and be less preoccupied with couching everything in business terminology, no matter how fashionable that may have become with some provincial governments. It is permissible to continue calling departments

68 Brian V. Bourns, KPMG Management Consultants, *Organizational Design, Municipality of Chatham-Kent*, November 4, 1997, p. 6, as quoted in Thomas R. Hollick and David Siegel, *Evolution, Revolution, Amalgamation: Restructuring in Three Ontario Municipalities*, Local Government Case Studies No. 10, London, ON: University of Western Ontario, 2001, p. 219.

“departments,” even after they are regrouped into more effective combinations. The new public information centre can be called just that; it doesn’t have to be known as one-stop shopping or one-window shopping. Employees can be challenged to strive for continuous improvement in performance (and rewarded accordingly) without there being a business plan, just as standards can be set, resources allocated, and results measured and monitored. What is actually being done is far more important than what it is called, especially when so much transplanted business terminology brings more confusion than enlightenment—internally and with the public.

Effectiveness of the Modified Machinery

While generalizations are difficult, it is probably fair to say that reforms at the administrative level have been more successful than those at the political level. In particular, the establishment of a chief administrative officer system has the potential to effect improved coordination and integration of municipal programs and activities. This system may help to develop an expanded research and analytical capability and the provision of more comprehensive policy advice and recommendations to council, but much depends on whether complementary changes are introduced in the management and decision making process of the municipality.⁶⁹ Designating a CAO also provides a specific focus of accountability and responsibility for the administrative performance of the municipality. In *Government by the Market*, Peter Self has identified some of the democratic limitations of this business-focussed approach.⁷⁰

Perhaps surprisingly, reforms at the political level have largely ignored the strengthening of the position of head of council, a shift more evident in New Zealand and Australia.⁷¹ Instead, the focus has been on the establishment of various forms of executive committee system, with quite limited success. Most of these committees have lacked political cohesion and have not had any means, except persuasion, to ensure that their initiatives receive the necessary support of council. The effectiveness of these committees has been dependent upon their method of selection and whether or not they are reinforced in their position and activities by the

69 These changes relate to such matters as strategic and long-term financial planning, and a top-down, priority-driven budget exercise. These process changes are at least as important as structural changes in bringing about improvements in municipal operations.

70 Peter Self, *Government by the Market? The Politics of Public Choice*, London, UK: Macmillan, 1993; see also his *Rolling Back the Market: Economic Dogma and Political Choice*, London, UK: Macmillan, 2000.

71 See, for example, Peter McKinley, *Insights: McKinlay Douglas LLP*, newsletters, 2015 (Auckland, NZ).

existence of organized political parties on council. In most cases, they are not, and the committees have lacked any power base as a result. On the other hand, bodies such as Ontario's board of control and the executive committees in Quebec backed by a block of party votes have been regarded as too strong and dominant. Striking a balance in these matters has been a challenge.

ARE POLITICAL PARTIES THE ANSWER?

Those seeking a strong executive within municipal government often call for the introduction of organized political parties, a topic of great controversy. What is it about parties that would create a strong executive and why are parties opposed so strongly?

THE CASE FOR PARTIES

Basically, parties perform the same task locally as they do at the senior levels; they organize the council into a governing group and an opposition group or groups. The creation of a governing party is significant because it provides the basis for concerted action. If heads of council are chosen by council, they would presumably be leading members of the majority party or majority group on council, and thus would have a power base to support their leadership. If they in turn choose their executive committee from the ruling group, then the committee has cohesiveness because of the common party affiliation and is somewhat analogous to a federal or provincial cabinet.

Political parties provide the potential for not only strong leadership but also more effective scrutiny of activities through an organized opposition or alternative governing group. As a result, there is a group within council pledged to scrutinize and criticize municipal activities, an important role that is normally left to everybody—and nobody. With so many local politicians in Canada serving as part-timers, the balance in political-bureaucratic relations may tend toward the administrative side. The mayor and executive committee members under a local party system need to retain the confidence of council since they owe their positions to council, not the electorate.

In addition, with political parties the operations of council become more understandable and accountable to the public. Since councillors run as a group on the basis of specific programs, there is a greater likelihood that citizens will vote on the basis of substantive issues and policies instead of on the usual basis of selection among personalities. It is also argued that an election campaign organized around opposing parties and alternative approaches generates greater public interest and a

higher voting turnout. In part, this is because parties can be expected to play their usual roles of aggregating interests, mobilizing public support, and trying to draw more citizens into the political arena. This is demonstrated in Vancouver where amongst BC's larger cities, civic turnout is somewhat higher than other urban neighbours. More importantly, at the end of a term, the public can attach responsibility for performance to the governing party since this group had the means to effect change. It is not possible for a ruling party to evade responsibility for action or inaction as individual councillors can and do.

How well things work will depend, of course, on the nature of the political parties involved. Proponents of party politics in local government assume a balanced situation with two or more parties that would alternate in power. If one party dominates council for a lengthy period, there is likely to be insensitivity to public opinion and other abuses, traits exhibited by provincial and federal governments in the same situation. Another issue is whether there would be local parties, focused on local issues, or just branches of provincial or national parties. In the latter case, the concern is that local issues would be neglected and that local election results might reflect the popularity or unpopularity of "parent" parties. On the other hand, purely local parties are often temporary coalitions of local interests that display little cohesion or concerted action once elected. They may be more properly described as factions or slates that reappear under a variety of names at election time and attempt to ensure the election of certain types of candidates, but do not exercise disciplined party voting within council.⁷² Such factions clearly don't provide the basis for a strong governing group or opposition. Long established local parties do exist in settings such as Vancouver or Burnaby in British Columbia or Montreal in Quebec. These too may morph but have demonstrated as much stability as senior counterparts.

THE CASE AGAINST PARTIES

Critics of political parties at the local level question the validity of a number of their alleged advantages.⁷³ For example, evidence from the senior levels of government hardly supports the claim that parties provide clear platforms and alternatives for the voter, or stick to their

72 Harold Kaplan, "Electoral Politics in the Metro Area," in Jack K. Masson and James Anderson (eds.), *Emerging Party Politics in Urban Canada*, Toronto: McClelland & Stewart, 1972, p. 147.

73 See, for example, David Siegel, "City Hall Doesn't Need Parties," *Policy Options*, June 1987, pp. 26–27, on which the following points are based.

platforms after elected! Nor is it apparent that parties at the senior levels provide strong leadership—at least according to the complaints often heard from both those within the system and from the public. Accountability at the municipal level arises from the small scale of operations and ready accessibility of the decision makers (in most municipalities) and does not need parties to ensure it. In fact, it can be argued that parties make councillors less accountable to the voters because they are expected to vote with their party on issues. As for the likelihood of increased voter turnout with parties, how beneficial this would be depends on the reason for the turnout. If municipal electors had gone to the polls in record numbers in elections in the early 1990s to defeat Progressive Conservative candidates because they disliked Brian Mulroney and the GST he introduced, this would hardly be striking a blow for local democracy.⁷⁴

There are, of course, a number of other arguments against the introduction of organized political parties at the local level. Chief among these is the assertion that parties introduce division where none exists or should exist. “There is no political way to build a road,” claim proponents of this viewpoint which reflects the lingering notion that local government activities are administrative, not political, in nature. Yet if the actual construction of a road is a matter of engineering, not politics, the decision on where to locate a particular road—or turning a road into a freeway—is certainly political. The decision on whether the traffic problem in question should be solved through building a road or providing an alternative form of public transit is also clearly political. The decision on whether the scarce financial resources of the municipality should be used on transportation or some other pressing need such as homelessness is again political. Indeed, if the municipal council is concerned with establishing priorities in relation to conflicting public needs and demands, its role must be political.

Political decisions are an essential element of municipal operations, but they are not carried into the local arena by parties. Parties, however, may help to make the unavoidable political decisions more systematic and accountable to the public. At the same time, it must be acknowledged that parties tend to exaggerate differences and also to criticize excessively for purely partisan purposes. These traits have often been evident in the actions of the parties operating at the senior levels of government.

Another major objection to parties is the feeling that they bring corruption and unsavoury practices into local government. This feeling was undoubtedly strongly influenced by the excesses of party politics and the corrupt spoils system in the United States in the so-called

74 *Ibid.*, p. 27.

Tammany Hall period leading up to the turn-of-the-century reform era of the late 1800s/early 1900s. Nor were such practices entirely absent from Canadian local government, as illustrated by discussions in Chapter 2. However, it should be remembered that it is people who are potentially corruptible, not that specialized subgroup known as politicians. If there are opportunities for dishonesty and abuse, some people may succumb to the temptation, but they will presumably do so whether they are individual councillors or members of an organized political party.

Ultimately, it doesn't really matter how soundly based are the arguments for or against political parties in municipal government. In practice, there is a strong public antipathy toward any such move. As Chapter 10 illustrates, efforts by the national parties to contest local elections have usually been rebuffed. Yet voters have often elected coalitions or slates of like-minded candidates masquerading as non-parties and committed to the defeat of organized parties. Highly successful "non-party" slates, such as Vancouver's Non-Partisan Association (NPA) sometimes even become "real" parties.

Concluding Comments

The various governing models used by municipalities over the years—and the governing philosophies underlying them—have, for the most part, reflected a concern for efficiency and coordination in the delivery of services to the relative neglect of the representative, accountable and political aspects that are (or should be) equally a concern of municipal government. Because of the limited success of efforts to create effective executive committees, the most prevalent reform of coordinating machinery has been the chief administrative officer system. No matter how well this system works, however, it does nothing to strengthen political leadership and, to the contrary, may even detract from this objective by creating a bureaucratic system and by undermining the power and public status of the council.

Even more democratically worrying are the developments in recent years that attempt to recast municipalities as businesses (or at least combinations of business units) and local citizens as consumers or clients. As one analysis describes the situation, "[u]nder various neo-liberal regimes of central government, local government structures and institutions in the global city have been radically transformed from democratic and representative into increasingly professionalized, marketized, entrepreneurial

and managerial forms.”⁷⁵ In the process, the importance of municipal government appears to have declined, with it now being increasingly portrayed as but one of many local service providers, public and private. The local citizen has been recast as a consumer of these services, diminishing both the importance of the citizenry and of local democracy. In light of these developments, the subject of Chapter 10—the methods by which citizens participate in municipal government—takes on added importance.

75 Evelyn S. Ruppert, “Who Governs the Global City?,” in Engin Isin (ed.), *Democracy, Citizenship and the Global City*, London, UK: Routledge, 2000, p. 275. See also Self, *Rolling Back the Market*.